Trade Unionism as a Sword and Shield: Promoting Environmental Action Whilst Ensuring Just Transitions

Investigating the Adequacy of Current Labour Law Frameworks in an Era of Sustainable Development

By

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Abstract

This dissertation examines whether there is a place in current labour law frameworks for trade unions to act as a sword and a shield. The adequacy of the frameworks are viewed in light of an ongoing push for climate sustainability and ensuring that the energy transition is a just one.

Incorporating political and historical elements alongside doctrinal legal analysis enables an effective chart to be made up demonstrating the slow decline of the efficacy of trade unionism. It argues that, in its current state, there is no place for climate strikes in the workplace and there is only a limited scope to engage with just transitions. In the wake of recent changes to longstanding provisions, the outlook is more dismal than ever. This dissertation hopes to provide valuable insight into some of the main issues that exist in the framework.

Dedication

This dissertation is dedicated to my grandparents:

William George Rattray,
Isobel Agnes Rattray,
Anne Hurst,
Harold Hurst.

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Author's Declaration

I declare that the work in this dissertation was carried out in accordance with the requirements of the University's Regulations and Code of Practice for Taught Postgraduate Programmes and that it has not been submitted for any other academic award. Except where indicated by specific reference in the text, this work is my own work. Work done in collaboration with, or with the assistance of others, is indicated as such. I have identified all material in this dissertation which is not my own work through appropriate referencing and acknowledgement. Where I have quoted from the work of others, I have included the source in the references/bibliography. Any views expressed in the dissertation are those of the author.

SIGNED: [redacted]

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ASLEF	Associated Society of Locomotive Engineers and Firemen
ASOS	(Industrial) Action Short of Strike
CAC	Central Arbitration Committee
ERA	Employment Relations Act 1999
EReA	Employment Relations Act 2004
ILO	International Labour Organization
ITUC	International Trade Union Confederation
NCB	National Coal Board
NIRC	National Industrial Relations Court
NUM	National Union of Miners
RMT	National Union of Rail, Maritime and Transport Workers
TUA	Trade Union Act 2016
TUC	Trades Union Congress
TULR(C)A	Trade Union and Labour Relations (Consolidation) Act 1992
TULRA	Trade Union and Labour Relations Act 1974
UK	United Kingdom
UN	United Nations
UNFCCC	United Nations Framework Convention on Climate Change

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ILO COLLECTIVE BARGAINING CONVENTION, 1981 (NO. 154)
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Chapter 1 – Introduction

> "If we never do anything which has not been done before, we shall never get anywhere. The law will stand still whilst the rest of the world goes on; and that will be bad for both."
> ***Packer v. Packer*** [1953] 3 W.L.R. 33 (CA), 36 (Denning L.J.)

1.1 – Hypothesis

The hypothesis to be tested in this dissertation is that the current framework surrounding industrial relations is inadequate when it comes to enacting broader social and environmental change.

1.2 – Research Questions

The primary research questions that the dissertation will seek to address are firstly, whether trade unions have the theoretical capacity to act as a sword and/or a shield to advance workers' rights. Secondly, how hostile the existing industrial action framework is towards trade unions that seek to go beyond reactively protecting their members. Finally, consideration of how trade unions have departed from their previously established position in the UK's industrial relations history.

1.3 – Methodology

This dissertation plans to take a broad doctrinal approach to the law by considering the law on the books as it is today. It will take the case study of environmental action and just transitions and try to fit these within the current frameworks surrounding industrial action and collective bargaining. The underlying theme throughout anything related to industrial relations is solidarity. Where necessary, specific attention will be paid to this theme and views of how it interplays with the other themes of this dissertation, climate justice and just transitions, will be considered.

There will, where relevant, be consideration of key historical and political moments and the significance they have had on both unions and their members. The defining moments of the 1960s onwards have shaped the current political, legal and social climates in which trade unions operate. Given that Britain has a strong, unique history of industrial relations, it would be remiss to leave these factors out.

1.4 – Importance of the Topic

There is increasing understanding and growing concern about climate change at national level, but also at supranational level before institutions like the United Nations.

It was recognised at the 15th Conference of the Parties (COP15) that any action taken to combat climate change would, by necessity, have to involve consideration of the effects that climate policies might have on the workers. The termed 'just transition' would be a plan to offset the harmful effects of an energy transition and allow workers to emerge from the plans as unscathed as possible.

1.5 – Outline

The second chapter will consider what is meant by trade union acting as a sword or a shield. To do this, two case studies will be drawn upon: the coal miner's strike and a broad conception of a just transition. Given that these appear outside the normal scope of trade union activity, there will also be some normative analysis over whether it is right that these areas receive attention.

The third chapter outlines and analysis the current legal framework of collective bargaining and the freedom to take industrial action. There are too many provisions to cover in a dissertation of this length, so only the main ones will receive in-depth treatment. At the end of this chapter will be attempts to locate just transitions within the broader framework.

The fourth chapter will delve into the changing efficacy of trade union activity. This is where the majority of the historical and political aspects will come into play, given that legal pressure is but one of the factors acting upon the unions at any given time.

Chapter 2 – The Aegis and Excalibur of Trade Unionism

Prior to consideration of how or why a trade union might want to wield their power as a sword or as a shield, it is important to clarify what is meant by this to avoid any possible misinterpretation. One would hope it goes without saying that the sword and shield are metaphorical constructs used to illustrate a point and are not referring to, for example, Mick Lynch attending a collective bargaining negotiation wearing a panoply.

The 'sword' denotes where trade unions are able to act 'on the offensive' and use the power they hold in order to actively promote change on behalf of a bargaining unit, a workforce or a community. This has typically been constrained to actions within the workplace, but the effects of their conduct can spill out into other sectors and sometimes even in public policy. Further exploration into how trade unions have been able to effectively utilise this in the past in order to effectively promote change, is detailed in chapters 3 and 4.

The 'shield' analogy refers to either where trade unions are forced into a defensive stance where they are unable to, or unwilling to, act in an 'offensive' manner (in the approbative sense of the word). When trade unions act in this way, they typically seek to either maintain the status quo or work towards minor improvements as opposed to broader change.

It is also important to note that the usage of these illustrative tools is not an implication that trade unions are locked in a dialectical state where they can act either as a sword *or* as a shield. Trade unions are, by necessity, forces for both continuity and change.[1] If a union were to neglect continuity, then the employer would be able to change terms and conditions without consequence, and if they were to neglect the change element, then they would lose the ability to adapt to changing political and legal frameworks.

The purpose for the artificial distinction made in this chapter is to further aid understanding rather than to separate trade union functions into mutually exclusive categories. By way of illustration, trade unions can engage in collective bargaining which can be used to push for higher remuneration (a sword);[2] and coverage by a

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1 Lukas Prinz and Anna Pegels, 'The role of labour power in sustainability transitions: Insights from comparative political economy on Germany's electricity transition' (2018) 41 *Energy Research and Social Science* 210, 211.

2 Keith Ewing, 'The Function of Trade Unions' (2005) 34(1) *Industrial Law Journal* 1, *passim*.

collective agreement can also protect the workers from inducement by an employer to take cuts to their working conditions (a shield).[3]

2.1 – Trade Unions Achieving Change

Trade unions have a variety of tools at their disposal to achieve change for their members and to apply pressure upon employers. There are broadly understood to be four key classifications of methods utilised by unions: economic regulation, job regulation, exercise of power and the pursuit of wider social, economic, or political change.[4] Each of the following primary methods of change contain a combination of these four classifications.

2.1.1 – Collective Bargaining

Collective bargaining, as defined by the United Nations' International Labour Organization includes

> "negotiations which take place between an employer, […] and one or more workers' organisations, […] for determining working conditions and terms of employment [and] regulating relations between employers and workers".[5]

A similar definition is adopted under domestic law, under the Trade Union and Labour Relations (Consolidation) Act 1992 (hereinafter TULR(C)A).[6] It is, in essence, a treaty between two social powers.[7]

It is axiomatic to say that the power dynamic in the employment relationship is asymmetrical, and the employer generally has the power to dictate the terms and conditions of employment. They do this through the inclusion of express contractual terms and the development of an employee rulebook.[8] Collective bargaining is the industrial relations embodiment of the phrase 'strength in numbers' in that it empowers

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3 Trade Union and Labour Relations (Consolidation) Act 1992 (TULR(C)A), Section 145B; *Kostal UK v. Dunkley and Others* [2021] UKSC 47 (SC).

4 Ralph Darlington, 'The Role of Trade Unions in Building Resistance: Theoretical, Historical and Comparative Perspectives' in Maurizio Atzeni, *Workers and Labour in a Globalised Capitalism* (ed, Basingstoke: Palgrave Macmillan, 2014), p.117.

5 International Labour Organization, Collective Bargaining Convention, 1981 (No. 154), art.2.

6 Trade Union and Labour Relations (Consolidation) Act 1992 (TULR(C)A), s.178.

7 Paul Davies and Mark Freedland, *Kahn-Freund's Labour and the Law* (3ed, London: Stevens and Sons, 1983), p.123.

8 Mark Freedland, *The Personal Employment Contract* (ed, Oxford: Oxford University Press, 2005), p113; Hugh Collins, Keith Ewing and Aileen McColgan, *Labour Law* (2ed, Cambridge: Cambridge University Press, 2019), p.132.

the individual workers with greater bargaining power than they would have if they were alone.[9]

Though collective bargaining can be enterprise-based, sectoral or national, the changes that can be made tend to be quite narrow in scope and they seldom lead to substantive structural change in the same way that strikes might.[10] Collective Bargaining (at least in recent years) tends to be constrained to single-enterprise bargaining with their employers over remuneration, health and safety and other terms and conditions. Having said this, it is considered that collective bargaining ought to be admired for more than just its substantive outcomes, but for the procedural way it allows workers democratic participation in the workplace and helps them to exercise their voice to achieve stronger outcomes.[11] This in itself grants a form of democratic legitimacy to the workers' requests and provides further sources of power.

Where the employees (through the trade union representatives) can approach an employer with a list of points that the workforce as a whole would like to resolve, the employer is much more likely to take note and negotiate around these demands. If not, they run the risk of causing unrest in the workplace that could lead to forms of industrial action.[12] Youngdahl sums this up neatly when he states that "the powerless can only progress their work life in concert with each other, not alone".[13]

2.1.2 – Strikes

Richard Hyman defines a strike as "a temporary stoppage of work by a group of employees in order to express a grievance or enforce a demand".[14] TULR(C)A 1992

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9 Terry Leap and David Grigsby, 'A Conceptualization of Collective Bargaining Power' (1986) 39(2) *Industrial and Labor Relations Review* 202, *passim*; Samuel Bacharach and Edward Lawler, 'Power and Tactics in Bargaining' (1981) 34(2) *Industrial and Labor Relations Review* 219, 220-1.

10 Richard Hyman, 'Pluralism, Procedural Consensus and Collective Bargaining' (1978) 16 *British Journal of Industrial Relations* 16, 32.

11 Virginia Mantouvalou, 'Democratic Theory and Voices at Work' in Alan Bogg and Tonia Novitz, *Voices at Work: Continuity and Change in the Common Law World* (ed, Oxford: Oxford University Press, 2014), *passim*; See also, Richard Hyman, 'Pluralism, Procedural Consensus and Collective Bargaining', *supra* n10, pp.32 *et seq* (particularly the analogy where he compares collective bargaining to a procedural pas-de-deux).

12 Eric Tucker, 'Can Worker Voice Strike back? Law and the Decline and Uncertain Future of Strikes' in Alan Bogg and Tonia Novitz, *Voices at Work: Continuity and Change in the Common Law World* (ed, Oxford: Oxford University Press, 2014), p.456.

13 Jay Youngdahl, 'Solidarity First: Labor Rights are not the Same as Human Rights" (2009) 18(1) *New Labor Forum* 30, 31-2

14 Richard Hyman, *Strikes* (4ed, Basingstoke: Palgrave MacMillan, 1989), p.17. A similar definition can be found in the Court of Appeal in *Tramp Shipping Corporation v. Greenwich Marine Incorporated* [1975] 1 W.L.R. 1042 (CA), 1064.

adopts a simplified definition of a strike as being "any concerted stoppage of work".[15] As can be seen from the broadness of these definitions, it is difficult to come up with a definition that encapsulates all possible forms of strike action owing to the complexity and heterogeneity of forms that strike action might take.[16]

Strikes, of course, have the power to exact change in their own right by adversely affecting the employer's productivity which can provide both direct and indirect application of force. The act of workers walking out on strike places economic pressure on the employer to capitulate to their demands outright or return to the negotiating table. Taking, by way of illustration, a factory that produces steel: the longer the factory floor workers are not producing the steel, the longer the employer will have their further obligations unfulfilled. If they had contracted to have a tonne of steel ready for delivery by a certain date, they have a legal obligation to meet that deadline. If their workers are not producing the steel (due to the strike action) then the employer would be increasingly unlikely to be able to fulfil their obligation which could cause them to incur liability under the contract.

It would be remiss to argue that this is the only form of pressure applied by strike action. Strikes can also draw media attention which also applies indirect force on the employer, particularly if the strikers' demands are viewed by the public as reasonable or if the employer is viewed as being particularly exploitative.[17] This can create a 'snowball' effect where a workplace dispute persists and grows to attract the media and sometimes even Members of Parliament intervene in order to enact broader societal change.[18] Though this is rare, and in recent years politicians have been hesitant to associate themselves with the trade union movement at the risk of incurring political backlash.

Strikes, or rather the threat thereof, can also be used to strengthen the union's, and by extension, the worker's bargaining power. The threat of disruption is almost as good as the disruption itself. An employer has the choice to either accept the threat and

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15 Trade Union and Labour Relations (Consolidation) Act 1992 (TULR(C)A), s.246.

16 Richard Hyman, *Strikes*, supra n14, p.55; Alvin Gouldner, *Wildcat Strike* (2ed, London: Harper and Row, 1965), p.65; John Eldridge, *Industrial Disputes* (ed, New York: Humanities Press, 1968), p.3; Clark Kerr, 'Industrial Conflict and Its Mediation' (1954) 60(3) *American Journal of Sociology* 230, 232.

17 David Morley, 'Industrial Conflict and the Mass Media' (1976) 24(2) *The Sociological Review* 245, 253 *et seq*.

18 For an example of this, see Barbara Castle's involvement in the Ford Dagenham Sewing Machinists Strikes in 1968 and eventual implementation of the Equal Pay Act 1970.

concede or they can hope that the complexity of statutory framework will restrain the strike. As mentioned briefly above, where an employer declines to negotiate or consider the workforce's demands, they can elect to withdraw their goodwill (Industrial Action Short of Strike) or their labour (Strike) in order to force the employer's hand. For this reason, the right to take industrial action is sometimes considered inseparable from the right to engage in collective bargaining since, in its absence, collective bargaining would be reduced to mere collective begging.[19]

2.1.3 – Industrial Action Short of Strike (ASOS)

There is no explicit statutory or common law definition of Industrial Action Short of Strike but there are provisions which allude to what it might contain.[20] Section 229 TULR(C)A 1992, for example, defines ASOS as including overtime bans and call-out bans.[21] These are both methods that involve the withdrawal of goodwill, so employees stop going above and beyond what is expected of them. Using this logic, it might also include 'work-to-rule' which is defined as strict adherence to the terms of the contract and refusal to do any work above the bare minimum required under the contract or an incorporated employee handbook.[22]

Employees might prefer this method of achieving change since it is generally not against any express terms of the contract whilst applying high levels of pressure to the employer.[23] For example, in *Secretary of State v. ASLEF*, the judges acknowledged that the withdrawal of goodwill is perfectly legal, but the issue arises when the court turned to the motives behind the withdrawal.[24] The unlawful thing was where the withdrawal of goodwill became an obstruction to business and was done with malicious or chaotic intent.[25]

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19 Eric Tucker, 'Can Worker Voice Strike back?', *supra* n12; Tonia Novitz, 'The Perils of Collective Begging: the case for reforming collective labour law globally and locally too' (2020) 44(2) *New Zealand Journal of Employment Relations* 3, *passim*.

20 The Court of Appeal have previously declined to provide a definition, trusting that the Tribunals would be able to recognise it when it was before them: *Power Packing Casemakers Ltd v. Faust* [1983] Q.B. 471 (CA), 475E,

21 Trade Union and Labour Relations (Consolidation) Act 1992 (TULR(C)A), s.229(2A).

22 Charles Barrow, *Industrial Relations Law* (ed, London: Routledge-Cavendish, 2002), p.287-8.

23 Charles Barrow, Industrial Relations Law, supra n22, p.287.

24 *Secretary of State for Employment v. Associated Society of Locomotive Engineers and Firemen (No.2)* [1972] 2 Q.B. 455 (*Secretary of State v ASLEF)*, 492.

25 ibid.

2.2 – A Sword of Climate Adaptation: Powering the Energy Transition

Trade unions are, in theory, able to utilise their power effectively in order to promote positive change in the workplace. There have also been instances in history where trade unions (and in particular their usage of industrial action) have prompted broader political, social and environmental change. Perhaps the most striking instance of this is found in the coal mines and how the industrial action taken by miners has, albeit inadvertently, hastened the energy transition away from fossil fuels.

2.2.1 – Coal Miners' Strikes

It is well-documented in industrial relations literature that coal miners held enormous power owing to the importance of the product they produce. Coal has been described as "the material energy of the country" and "without it, we are thrown back into the laborious poverty of early times".[26] Jevons' assessment is no hyperbole, at least at the time it was written, since the industrial revolution of the 19th century could not have happened had it not been for coal.

For those who lived in the main mining regions, mining was not simply a profession, it was a way of life.[27] The inter- and intra- generational solidarity has led to high levels of organisation which, in turn, has enabled them to translate any grievances they might have into action.[28] It is for this reason, as well as the importance of coal, that miners have been identified as some of the most combative and the "sturdiest fighters" in the sphere of industrial relations.[29]

Indeed, the miners held strikes in response to their own workplace disputes with their employers over matters ranging from the conditions of work to the closure of mines and the associated loss of jobs.[30] Their action however, extended beyond action within the coal mine and spread into other areas. For instance, the miners have contributed

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26 William Jevons, *The Coal Question: An Inquiry Concerning the Progress of the Nation, and the Probable Exhaustion of Our Coal-mines* (ed, London: Macmillan, 1865), p.2.

27 Jean Spence and Carol Stephenson, '"Side by Side With Our Men?" Women's Activism, Community, and Gender in the 1984–1985 British Miners' Strike' (2009) 75 *International Labor and Working Class History* 68 (Side by Side), 1; Roy Church and Quentin Outram, *Strikes and Solidarity: Coalfield Conflict in Britain, 1889–1966* (ed, Cambridge: Cambridge University Press, 1998), pp.1-2.

28 Jonathan Winterton, 'The trend of strikes in coal mining 1949–1979' (1981) 12(6) *Industrial Relations Journal* 10, 10.

29 Harrison Bulman, *Coal Mining and the Coal Mine* (ed, London: Methuen & Company, 1920), p.2.

30 Jean Spence and Carol Stephenson, "Side by Side", *supra* n27, pp.69-77; Lewis Mates, *The Great Labour Unrest: Rank-and-file Movements and Political Change in the Durham Coalfield* (ed, Manchester: Manchester University Press, 2016), Chapter 3.

to some of the great changes in employment rights, including changes to pensions, healthcare, and the right to vote.[31]

However, the labelled 'militancy' drew criticism from many angles, some stating that the miners had too much power and that they had the country at their mercy.[32] Interestingly, the government at the time took the public stance that they were unconcerned with the strikes and that they were not disrupting the "normalcy of economic and industrial life".[33] Some thirty years later however, papers were declassified that showed that, at the height of the 1984 miners' strike, Margaret Thatcher had contemplated declaring a state of emergency and using the army as strike-breakers to ensure the passage of coal throughout the country.[34] These are not the ruminations of a party unconcerned by industrial action.

Tomassetti points out that at this time strikes were being used as a weapon; the miners were employing tactics like sabotage and go-slows in order to enforce their demands.[35] Though it got results, it inevitably led to legal restrictions being placed on industrial action with politicians wanting to limit the power they could exert over valuable services. He sums up that after the mobilisations, workers have 'fallen back on the defensive, and will never return to the attack'.[36]

Though it was not the intent of the miners at the time to push forward the transition to more renewable energy sources, and such an outcome was probably injurious to the coal mining communities, that was the effect the militant action had. The conversion from domestically sourced coal to imported oil was engineered to weaken the grip the coal miners had on the country and avoid further disruptions in the energy grid.[37]

For reasons that will be highlighted below, such usage of industrial action would not be permissible under the current framework.

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31 Lewis Mates, *The Great Labour Unrest*, *supra* n30, *passim*.

32 Roy Church and Quentin Outram, *supra* n27, pp.17 *et seq*.

33 Jim Phillips, 'Containing, Isolating and Defeating the Miners: the UK Cabinet Ministerial Group on Coal and the three phases of the 1984–5 Strike' (2014) 35 *Historical Studies in Industrial Relations* 117

34 *ibid*.

35 Paolo Tomassetti, 'Energy Transition: A Labour Law Retrospective' (2022) *Industrial Law Journal* dwac008 <available online: https://doi.org/10.1093/indlaw/dwac008>, 7.

36 Paolo Tomassetti, *op. cit*, 11.

37 Paolo Tomassetti, *op.* cit, 12.

2.3 – A Shield of Just Transitions

One of the primary functions of a trade union is to ensure that its members are protected (insofar as is possible) from adverse effects of governmental policies, changes in the labour market and other external forces.[38] The specificities of how they might do this have been discussed earlier in this dissertation.[39] This section will explore a few different types of just transition prior to a consideration of a definition.

2.3.1 – Types of a 'Just Transition'

It is not contested that a just transition is a homogenous phenomenon, and precisely how a union treats a just transition will largely depend on the sector(s) it covers. The author would like to emphasise that there is a distinction to be drawn between a just transition *within* a fossil fuel economy, and a just transition *away from* a fossil fuel economy and the following types reflect this.[40] In order to explore how a trade union might use a just transition as a shield it is important to consider the different types of just transition and the effects they might have on those in the labour market. This subsection will cover the three broad types as identified by Normann and Tellmann.[41]

2.3.1.1 – *Market-Based / Shared Solution*

The shared solution approach is targeted more towards offsetting the social effects of a transition to a lower-carbon economy as opposed to the environmental or economic impacts. It does not artificially attempt to phase-out the fossil fuel industries, rather it leaves that aspect to the market.[42] This is to say that as the demand for fossil fuels go down, the supply will follow (and the fossil fuel sector(s) will diminish alongside). This approach does however acknowledge that some jobs are bound to disappear and that other (environmentally sustainable) jobs will take their place. This narrative of 'green growth' is heavily reliant on market-driven innovation

It would involve international union engagement with organisations like the International Labour Organization (ILO) and the United Nations Environment Programme (UNEP) to set up formal and informal initiatives in order to make workers'

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38 Keith Ewing, 'The Function of Trade Unions', *supra* n2, *passim*.
39 See *supra*: 2.1 – Trade Unions Achieving Change.
40 Håkon Normann and Silje Tellmann, 'Trade Unions' Interpretation of a Just Transition in a Fossil Fuel Economy' (2021) 40 *Environmental Innovation and Societal Transitions* 421, 424.
41 Håkon Normann and Silje Tellmann, *op. cit.*, 423 *et seq*.
42 Håkon Normann and Silje Tellmann, *op. cit.*, 423.

voices heard. One such example is the International Trade Union Confederation (ITUC)'s Just Transitions Centre which aims to engage with these types of dialogue. It pulls together workers, businesses, and governments in order to amplify the worker's voices across boundaries it might not have crossed before.[43] One example was where they launched a campaign during the United Nations Framework Convention on Climate Change (UNFCCC)'s Copenhagen Conference in 2009. By doing this, they to ensured that Just Transitions were placed on the agenda when it came to the climate change plans.[44]

Though the efficacy of the UN's various climate change plans has been heavily questioned and criticised,[45] one cannot help but mention that it is pleasing to see trade unions getting involved in this kind of dispute that goes beyond their original scope. As will be seen below, this is a beacon of hope that helps to keep the institution of the trade union modern, relevant, and alive in industrial society.

2.3.1.2 – *Ecological Modernisation / Differentiated Responsibility*

The differentiated responsibility approach is geared towards defending the 'losers' in the transition (usually the workers whose industries are going to be dismantled or otherwise affected). Unsurprisingly, most unions planning to take this approach are in those sectors most at risk. They vehemently avoid trying to intervene (by either preventing or delaying) the declining usage of fossil fuels.[46] The trade union involvement transcends the amplification of worker voices beyond what could be accomplished alone into the realm of bargaining and supporting the transformation of the roles into more sustainable ones.

They do this by pushing for investment in technology and technological fixes geared towards emissions reduction whilst keeping the industry intact (like new ways to capture and store carbon to limit the amount of carbon in the atmosphere).

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43 https://www.ituc-csi.org/just-transition-centre; Dimitris Stevis and Romain Felli, 'Global labour unions and just transition to a green economy' (2015) 15 *International Environmental Agreements* 29.

44 Adrien Thomas, 'Framing the just transition: How international trade unions engage with UN climate negotiations' (2021) 70 *Global Environmental Change* 102347, *passim*.

45 David Campbell, 'What does the Paris Agreement actually do?' (2016) 27(8) *Energy & Environment* 883.

46 Dimitris Stevis and Romain Felli, *supra* n43, 37.

There would also be investment in re-training and re-education to support workers that might have to be transitioned between sectors. Where this is the case and the newer sectors receive lesser remuneration, the trade unions engage in negotiations with employers in the new sectors in order to ensure that the workers do not lose out.

2.3.1.3 – *Socio-Ecological / Radical and Transformative*

This is the least common approach taken by trade unions since it takes an eco-centric approach as opposed to an anthropocentric one. This approach goes beyond the amplification of worker voice or collective bargaining for higher conditions.[47] This would require a total reorganisation and redefinition of the relationship between capital, labour, and government in order to ensure that workers are well protected. This goes beyond mere adjustment into a low-carbon version of the current society into a different type of society.[48]

Marx once stated, of trade unions, "they are fighting with effects, but not with the causes of those effects".[49] Both he and Engels thought that trade unions had the potential to transform society away from one where workers are exploited by their employers but that it was unlikely without a significant transformation in society.[50] It is perhaps also the most controversial and unlikely of the conceptions to come to fruition any time soon, particularly with the current framework and likely future of trade unions that will be explored below.

2.3.2 – Definition of a 'Just Transition'

In a dissertation of this length, it would not be possible for full and thorough consideration of each of the types of just transition. The heterogeneous types of transition mean that the definition of a just transition invariably differs between organisations so there will first be consideration of precisely what is meant by a just transition in the context of this dissertation.

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47 Dimitris Stevis and Romain Felli, *supra* n43, 39.

48 *ibid*; Håkon Normann and Silje Tellmann, *supra* n40, 424; Linda Clarke and Carla Lipsig-Mummé, 'Future Conditional: From just transition to radical transformation?' (2020) 26(4) *European Journal of Industrial Relations* 351.

49 Karl Marx, 'Wages, Price and Profit' in Karl Marx and Frederick Engels, *Selected Works* (ed, Moscow: Progress Publishers, 1970), p.225.

50 *ibid*, pp.225 *et seq*; Frederick Engels, *The Condition of the Working Class in England* (ed, St Albans: Panther, 1969), pp.251-2.

Doorey and Rosemberg consider a just transition to be a plan to offset the adverse effects that the transition from high greenhouse gas to low carbon economies will have on workers whose livelihoods are at stake.[51] Though this provides a broad encapsulating definition, the present author feels that it lacks the specificity, in terms of what the plan might entail, for any real analysis in this context. Galgóczi offers an alternative definition as being the 'framework developed by the union movement to encompass a range of social interventions needed to secure workers' rights and livelihoods when economies are shifting to sustainable production'.[52]

The second form of just transition, differentiated responsibility, has the greatest potential for discussion and the least reliance on uncertainty. The first model (shared solution) is largely dependent on the market in order to make realizable environmental change, and the market is too unpredictable to be able to make any real prognosis about trade union development. The third (radical and transformative) is reliant on much broader coverage and looser regulation of trade unions which is just unlikely in the current political climate (as will be discussed in the fourth chapter).

The specificity of Galgóczi's definition makes it the most attractive since it provides actual possibilities for analysis, including the phrasing "social interventions" which might be extended to the re-education and re-training that would be necessary with a differentiated responsibility just transition.

2.4 – Radical Reform or Regulatory Necessity?

Some reading this dissertation would argue that environmental action such as that mentioned above is, or ought to be, wholly outside the realm of areas trade unions can act in. This section hopes to assuage any doubt that the reader might have.

Trade Unions have, according to Keith Ewing, five primary functions: a service function, a representation function, a regulatory function, a government function, and

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51 David Doorey, 'A transnational law of just transitions for climate change and labour' in Adele Blackett and Anne Trebilcock, *Research Handbook on Transnational Labour Law* (ed, Cheltenham: Edward Elgar, 2015), p.552; Anabella Rosemberg, 'Building a Just Transition: The Linkages Between Climate Change and Employment' (2010) 2(2) *International Journal of Labour Research* 125.

52 Béla Galgóczi, 'Just transition on the ground: Challenges and opportunities for social dialogue' (2020) 26(4) *European Journal of Industrial Relations* 367, 380.

a public administration function.[53] Though the political and social climate in which Trade Unions operate has shifted since Ewing's seminal work was written in 2005, there has been little change in their functions, just in their capacity to act in these regards.

A Just Transition has received little consideration in the academic literature owing to its recent emergence as a concept. Galgóczi's definition, combined with Normann and Tellman's trinary model of a just transition will provide for some interesting normative analysis.

The definitions provided clearly incorporate some elements of Ewing's representation function since a lot of the social interventions mentioned by Galgóczi will involve the employer.[54] Where the employees wish to engage with collective bargaining in order to 'green' the workplace, the trade union can help to galvanise the voices and present them as a united front. Even if some workers care more than others, the transcendence of an individual voice will invariably support the overall strategy.

Some interventions, go beyond the direct employer like as the push for technological advances to slow the decline of fossil fuels. For this, as well as the political nature of climate chance, engagement with broader government will need to be considered. This can loosely be mapped onto Ewing's governmental function.[55] Though he broadly thinks of it as being a means to achieve legislative change to allow the union to exercise its other functions, it might be modified slightly to include an expansion of the 'trade dispute'.

Perhaps the only revolutionary thing that could attract criticism is the expansion of trade union concern beyond the workplace into the perceived political. There is no reason that the present author can see that there would need to be any radical expansion in scope, there is a lot that the union could do within a differentiated responsibility just transition that could be achieved within the current framework. The only thing that might need to change is the union coverage and density.

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53 Keith Ewing, 'The Function of Trade Unions', *supra* n2, 3.
54 *ibid*. 3-4.
55 *ibid, 4*.

Chapter 3 – Current Legal Framework(s) in the United Kingdom

This chapter starts with a consideration of what the legal frameworks are surrounding collective bargaining and industrial action. The complexity of the law in this area requires evaluation in its own right prior to application of the law to proposed climate action before locating a place for just transitions within the framework.

3.1 – Immunity for Industrial Action

As explored above, the statutory definition of a strike is a concerted stoppage of work.[56]

For the trade union, the default common law position of calling industrial action is that calling workers out on industrial action is inducing or procuring them to breach their contracts of employment.[57] This would incur tortious liability for them. For the worker, the default common law position of participating in industrial action is that such action is a fundamental breach of contract and might constitute gross misconduct for the purposes of dismissal.[58]

The law, however, recognises the importance of the strike in the functioning of the labour-capital dynamic in that it provides limited protections for both the trade union and workforce where the action is deemed 'lawful'. The law, however, does not expressly recognise a *right* to strike, it is merely an immunity from certain forms of liability.[59] This is a frequently occurring misnomer in the industrial relations literature and media coverage of strikes that has the potential to be misled as to the scope and nature of the immunity. The trade union receives immunity from tortious liability for inducing breach of contract and other economic torts, and the employee receives the right not to be dismissed for participating in lawful industrial action.

This section will consider some of the conditions that must be met prior to the industrial action being classified as lawful. Though it would not be possible to consider all the constituent elements of the immunity, the primary ones that might arise in the context of environmental action and just transitions will be considered. The framework(s) will

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56 See *supra*: 2.1.2 – Strikes.

57 *Lumley v. Gye* (1853) 2 E&B 216 (HC – QBD).

58 *Simmons v. Hoover* [1977] I.C.R. 61 (EAT).

59 Ruth Dukes, 'The Right to Strike under UK Law: Not Much More than a Slogan' (2010) 39(1) *Industrial Law Journal* 82; Ruth Dukes, 'The Right to Strike under UK Law: Something More Than a Slogan?: NURMT v SERCO, ASLEF v London & Birmingham Railway Ltd' (2011) 40(3) *Industrial Law Journal* 302.

be looked at through a critical lens before consideration of whether climate strikes (in the true sense of the word) might be considered lawful.

3.1.1 – Section 219 of TULR(C)A 1992: The Golden Formula

Section 219 of the Trade Union and Labour Relations (Consolidation) Act 1992 sets out what the objectives of the industrial action must be in order to benefit from the statutory immunity from tortious liability.[60] It ought to be noted that this section does not confer the immunity onto the workers themselves however, it grants the organisers (the unions) immunity from liability for inducing employees to take lawful industrial action.[61] The immunities conferred directly to employees will be considered separately below.[62]

The so-called 'Golden Formula' requires that the actions taken, i.e. the trade unions inducing the employees to break or interfere with their contracts, are carried out in "contemplation or furtherance of a trade dispute".[63] It has been noted that it is not the court's job to assess the "rights or wrongs of the dispute itself" and that the court's main purpose in this area is to find on two points.[64] Firstly, whether or not there is a trade dispute as defined by Section 244. Secondly, whether the (proposed) industrial action is done in furtherance or contemplation of that dispute. The following subsections will delve into these two questions, respectively.

3.1.1.1 – *Section 244 of TULR(C)A 1992: 'Trade Dispute'*

A Trade Dispute, in order to be able to fall within the scope of the Section 219 immunity must relate "wholly or mainly" to one of the following areas:

(a) terms and conditions of employment or physical working conditions;
(b) engagement or non-engagement, or termination or suspension of employment or the duties of employment, of one or more workers;
(c) allocation of work or job duties between workers or groups of workers;
(d) disciplinary matters;
(e) a worker's membership or non-membership of a trade union;
(f) facilities for officials of trade unions; and

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60 Robert Simpson, 'Trade Dispute and Industrial Dispute in British Labour Law' (1977) 40 *Modern Law Review* 16.
61 Trade Union and Labour Relations (Consolidation) Act 1992, s.219(1).
62 See *infra*: 3.1.4 – Section 238A of TULR(C)A 1992: Unfair Dismissal of Participants.
63 Trade Union and Labour Relations (Consolidation) Act 1992, s.219(1).
64 *London & Birmingham Railway Ltd v. Associated Society of Locomotive Engineers and Firemen* [2011] EWCA Civ 226 (CA), [33].

(g) Trade union recognition, negotiation and consultation agreements or machinery.[65]

A semantic point that ought to be raised at this point is that it is unnecessary for the dispute to be entirely related to one of these points, it is enough that the dispute be "mainly" related to the criterion. This suggests that it is possible for industrial action to be lawful even where some of the aims of the industrial action lie outside the scope of Section 244, as long as the main reason(s) are included within the section. This is a much higher bar than was previously required, the old law simply requiring that the action be connected to the dispute.[66]

Enhancing the thread of solidarity running through industrial action, there is also no requirement that every worker be affected by the matter that forms the basis of the dispute, it is enough that some are affected by it.[67]

3.1.1.2 – *'Furtherance or Contemplation'*

The House of Lords held that the question of whether a course of industrial action was in furtherance or contemplation of a trade dispute is a subjective one.[68] If a person doing an act does so in the honest and reasonable belief that the act will help with the dispute then it will do so.[69] It was unnecessary to consider whether their actions were likely to, or did in fact, achieve their purpose.[70]

This is not to say that every action which flows from a trade dispute is in furtherance of that dispute. A distinction is made by the court between actions that are done in furtherance of a trade dispute and those that are done in furtherance of a consequence of a trade dispute.[71] This may appear to be an unimportant distinction to make since the transitive nature of cause to effect should take with it the intent to further the dispute. The court disagreed and found that any action done in reaction to a *consequence* of the trade dispute was too far removed from the protection parliament intended and therefore ought to be excluded from the immunity.[72]

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65 Trade Union and Labour Relations (Consolidation) Act 1992, ss.244(1)(a-g).
66 *Mercury Communications Ltd v. Scott-Garner* [1984] I.C.R. 74 (CA), 101(B-F).
67 *British Telecommunications Plc v. Communication Workers Union* [2003] EWHC 937 (HC – QBD).
68 *Express Newspapers v. McShane* [1980] A.C. 672 (HL), 683.
69 *ibid*, 687F.
70 *ibid*.
71 *Beaverbrook Newspapers Ltd v. Keys* [1978] I.C.R. 582 (CA), 586(A-B).
72 *ibid*.

This will be critical when it comes to analysis of the possibility of trade unions using industrial action as a sword to promote climate justice.[73]

3.1.2 – Section 224 of TULR(C)A 1992: Prohibition of Secondary/Sympathy Action

One of the fundamental ideas underpinning trade unionism is solidarity and the willingness to help others in unfortunate situations. Solidarity can take many forms and ought not be constrained simply to single workplaces to achieve a strong and productive labour market.[74] To the dismay of much of the trade union movement and the name of solidarity itself, there is a prohibition on secondary, or sympathy, action.

Secondary action is defined by statute as where action is taken, threatened, or where another is induced to take action where that person's employer is not the party to the dispute.[75] The statutory definition is somewhat convoluted and is better explained by way of illustration. The case of *DC Thomson & Co Ltd v. Deakin* provides a relatively straightforward example.

3.1.2.1 – *DC Thomson & Co Ltd. v. Deakin and Others*[76]

The claimants (A) in this case printed and published periodicals and employed non-union labour. The paper they used to print on was supplied under a contract with another company (B). A had recently dismissed a member of staff who had become a member of a union (U1). U1 called members employed by A out on strike but also issued invitations for other unions to support their industrial action.

B's drivers, members of the Transport and General Workers Union (U2), informed B that they might not be prepared to deliver the paper to A for this reason. B's loaders, members of the National Union of Printers, Bookbinders and Paperworkers (U3), also declared that they would be unwilling to load paper for delivery.

A sought injunctive relief to restrain U2 and U3's workers from interfering with the completion of the contract since there was no dispute between the claimant and U2/3.

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73 See below: 3.2.1 – The Golden Formula.

74 Tonia Novitz, 'Sustainability as Solidarity Unbound: Labour Rights and Collective Voice in the United Nations Sustainable Development Goals and the European Union' in Julia López López, *Inscribing Solidarity: Debates in Labor Law and Beyond* (ed, Cambridge: Cambridge University Press, forthcoming), *passim*; *cf*. Keith Banting and Will Kymlicka, *The Strains of Commitment: The Political Sources of Solidarity in Diverse Societies* (ed, Oxford: Oxford University Press, 2017), *passim*.

75 Trade Union and Labour Relations (Consolidation) Act 1992, s.224(2).

76 *DC Thomson & Co Ltd v. Deakin and Others* [1952] Ch. 646 (CA).

U1 had attempted to induce the workers covered by U2 and U3 into breaching their contracts and therefore undertake secondary action.

3.1.3 – Sections 226-235 of TULR(C)A 1992: Balloting and Notice

The fundamental idea here is that actions done by a trade union to induce a person to partake in (or continue to partake in) industrial action are not protected unless they have the support of a ballot. It is also required that sufficient notice has been provided to the employer that the ballot is taking place, as well as the results of the ballot.[77] These requirements are effectively removing the possibility of wildcat strikes.[78]

Lord Donaldson has described the specifics of these requirements as being "a minefield in which it is all too easy to stray from the paths of safety and legality".[79] He is not alone in such sentiment, and it was brought up again more recently in the *British Airways* case. Although Lady Justice Smith held that though she considers the policy behind the balloting and notice requirements specifically was "not to create a series of traps or hurdles for the Union to negotiate", this appears to be the result of the legislation.[80] Both of these statements were made before the implementation of the Trade Union Act 2016 which introduced additional stringent balloting and notice requirements.[81]

There are many instances where the required balloting and notice provisions have not been complied with exactly, and the courts have granted injunctive relief restraining the proposed industrial action.[82] The following subsections consider some of the requirements that must be satisfied prior to the protection being granted.

3.1.3.1 – *Section 226A of TULR(C)A 1992: Notice of Ballot to Employer*

The union must inform the employer that the ballot is taking place within the week before the ballot opens and provide them with a copy of the ballot that was (or will be)

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77 Trade Union and Labour Relations (Consolidation) Act 1992, ss.226(1)(a) and 234A(1).

78 For further information see infra: 4.1.1 – Wilson, Heath, and the Industrial Relations Act 1971.

79 *Post Office v. Union of Communication Workers* [1990] I.C.R. 258 (CA), 261.

80 *British Airways plc v. Unite the Union* [2010] EWCA Civ 669 (CA) (*British Airways v Unite*), [149 -153].

81 Trade Union Act 2016, ss.2-7 (amending TULR(C)A 1992); Michael Ford KC and Tonia Novitz, 'An Absence of Fairness... Restrictions on Industrial Action and Protest in the Trade Union Bill 2015' (2015) 44(4) *Industrial Law Journal* 522, *passim*.

82 Charles Barrow, 'Balloting requirements and the right to strike: the retreat from Metrobus' (2013) 47(2) *The Law Teacher* 271, 271.

distributed to the members with no less than three days' notice.[83] The specifics of what must be included are also found in this section but cannot be considered in any real depth in a piece of this length.

3.1.3.2 – *Section 226B of TULR(C)A 1992: Appointment of a Scrutineer*

It is also required of the trade union that an independent scrutineer is appointed to oversee the balloting where the total number of members entitled to vote (or where the aggregate number of members) is greater than 50.[84] Though it is not required for ballots smaller than this, it is still recommended in order to demonstrate compliance with the framework more easily.[85]

The primary function of the scrutineer is to make sure that the statutory procedure is adhered to. They assess the risk of malpractice or interference from the union and if the risk is negligible, confirm the results of the ballot for both the union and the employer.[86] It grants and ensures a form of democratic legitimacy with the industrial action that can be used to defend the action where necessary.

3.1.3.3 – *Section 234A of TULR(C)A 1992: Notice of Industrial Action*

The union is required to provide two weeks' notice to the employer indicating that they are planning to take industrial action, but if the union and the employer agree it can be reduced to one week.[87] One possible rationale behind this is that there is a 'cooling off' period to encourage further thought on the industrial action to avoid as many strikes as is possible.

3.1.4 – Section 238A of TULR(C)A 1992: Unfair Dismissal of Participants

Where industrial action is not actionable in tort by virtue of the above provisions, an employee receives the right not to be unfairly dismissed for participating in lawful industrial action. This is not particularly relevant to the grand scheme of the dissertation, but it is important to note otherwise.

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83 Trade Union and Labour Relations (Consolidation) Act 1992, s.226A(1)

84 Trade Union and Labour Relations (Consolidation) Act 1992, ss.226B and 226C.

85 Department for Business, Energy, and Industrial Strategy, 'Code of Practice on Industrial Action Ballots and Notice to Employers' (March 2017).

86 Trade Union and Labour Relations (Consolidation) Act 1992, s.49(3).

87 Trade Union and Labour Relations (Consolidation) Act 1992, s.234A(4)(b).

3.2 – Feasibility of Industrial Action

This subsection will consider the application of the framework regulating industrial action to the case studies of climate strikes and just transitions, as defined above.[88] It adopts the breakdown as highlighted above, but it should be noted that these are not that straightforward in practice.

3.2.1 – The Golden Formula

A fundamental point of contention lies in that climate change is generally viewed as a political issue and the courts have historically taken a hard-line stance against industrial action in furtherance of political goals.[89] This inevitably leads to the question of whether the strike is linked to a workplace dispute or whether it is a political statement.[90]

There is no limit to the possible creative interpretation that could be employed to fit climate action under the scope of 'workplace dispute'. The efficacy of this, however, must be called into question. For example, it is conceivable, though incredibly unlikely, that a Union could argue that raising global temperatures fits into 'physical conditions' under s.244(1)(a). They would then have to make the tenuous causal link that the employer had contributed towards that in some way, otherwise their dispute would be with the environment as opposed to the employer. The proof necessary to satisfy the court would arguably cost more to gain than would be achieved by the action.

This problem is compounded when one looks to Sir John Donaldson's judgment in *Mercury*. Where there are multiple causes (as there might be if a union were pushing for the workers to take action for the benefit of the environment) it is the role of the tribunal to look into what the dispute was actually about.[91] Even if a union were to convince the court of a tenuous link, like the one outlined above, they would have to pass the further requirement that the action was in furtherance of the dispute as opposed to the furtherance of climate policies.

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88 See: 2.3.2 – Definition of a 'Just Transition'.

89 For example: *Mercury Communications Ltd v. Scott-Garner*, *supra* n66; *BBC v. Hearn* [1977] I.C.R. 685 (CA).

90 *Express Newspapers v. Keys* [1980] I.R.L.R. 247 (CA).

91 *Mercury Communications Ltd v. Scott-Garner* [1984] I.C.R. 74 (CA), 101(B-F).

To support them in this, the tribunal could consider what the demands of the workers were as to the resolution of the dispute. The demands might also be pertinent when it comes to assessing the closeness of the action to the dispute. For example, if the dispute were really about the rising temperatures in the workplace, the demands might be for the employer to provide air conditioning. If the dispute were about the environment masquerading as the temperature rising, they might be demanding the employer look into ways of reducing their carbon output.

Though it may be desirable for trade unions to act as a sword of climate justice, it is unlikely that they could make much headway in the current statutory framework. This is before consideration of the current political hostility towards trade unions that will be discussed later.

3.2.2 – Secondary Action

In addition to the difficulties outlined above, vis-à-vis the golden formula, there exists a fundamental difficulty in that action against a single employer would be unlikely to make any significant change to the environment or climate by itself. It might be able pressure an employer into switching to more carbon-neutral practices but that in and of itself will not create major differences. It might also cause the employer to become more proactive in lobbying the government to increase investment into renewable or cleaner energy sources.

What would be necessary for any serious change would be widespread industrial action, perhaps in the form of a general strike. Even if a single union were to be able to prove the impossible, that the environmental issues constituted a valid trade dispute, under section 224 they could not induce other unions to do the same or risk being liable in tort for inducing breach of contract or one of the other economic torts.

Of course, there is the underlying argument that 'every little helps' and even indie unions might be able to act in one way or another to help the broader issues.

3.3 – Collective Bargaining

A recognised trade union can engage in collective bargaining on behalf of employees.[92] The procedure for recognition is not strictly relevant here but it should be

[92] Trade Union and Labour Relations (Consolidation) Act 1992, s.70A and sch A1.

noted that there are procedures for voluntary recognition and statutory recognition (where an employer refuses to voluntary recognise it).[93] However, there is no compulsion on either party to engage in bargaining, it is based entirely around voluntarism. This system is referred to in the literature as *collective laissez-faire*.[94]

TULR(C)A provides a list of matters that can constitute the subject matter of collective bargaining and collective agreements. It mirrors those that can be covered by industrial action.[95]

It is presumed that unless the collective agreement is in writing and contains a provision stating that the parties intend for it to be a legally enforceable contract it is unenforceable before the courts.[96]

To top it off, since the 1980s there has been a marked decrease in coverage by collective agreements.

3.4 – Locating Just Transitions

Differentiated Responsibility just transitions require engagement with governments and other stakeholders in order to ensure that change is made. This can involve the creation, substitution, elimination, and transformation of jobs already in the labour market to fit a more environmentally friendly market.[97]

This might involve collective bargaining with the employer to encourage them to hold off on redundancies for as long as possible, or to provide leave to the workers for them to undergo some kind of skills training if their sector is one of those at risk. They could arrange for the 'greening' of workplaces which could transform existing roles into ones that support the environmental sustainability model. What is less contentious with the just transitions concept is that most the issues that are galvanized are those that fall under the standard definition for a trade dispute and therefore can readily be the subject of collective bargaining.

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93 Trade Union and Labour Relations (Consolidation) Act 1992, sch A1, paras 10-1.
94 Paul Davies and Mark Freedland, supra n7, pp.3 and 28.
95 Trade Union and Labour Relations (Consolidation) Act 1992, s.178.
96 Trade Union and Labour Relations (Consolidation) Act 1992, s.179.
97 United Nations Framework Convention on Climate Change, 'Just Transition of the Workforce, and the Creation of Decent Work and Quality Jobs' (2016) <Available online: https://unfccc.int/sites/default/files/resource/Just%20transition.pdf> [accessed 29/07/22], pp.16, 19 and 21.

In comparison to trade unions getting involved in environmental action, it would be much less complicated to fit just transitions into the industrial action framework. It would be undesirable to have frequent strikes since they would start to lose their effectiveness. Where an employer has "become accustomed to consuming strikes with its cornflakes",[98] it will learn to find ways around it and ways to offset the difficulty. Where strikes are used in a calculated manner to cause disruption, they will be more effective both as a threat and as a weapon.

It should be noted that just because most aspects of a just transition fit within the framework, does not mean that all aspects do. For example, with a differentiated responsibility transition, it might require union engagement at a higher level. This typically takes place beyond individual unions (like the TUC) and its involvement with national government and supranational governance, like the UNFCCC.

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98 Tony Lane and Kenneth Roberts, *Strike at Pilkington's* (ed, London: Fontana, 1971), pp.232-3.

Chapter 4 – Declining Efficacy of Trade Union Activity

4.1 – A Brief History of Efficacy

This section will consider how the efficacy of trade unionism has been affected by successive legislative enactments and shifting political philosophies. It will provide a foundation on which to base assessment of the current form of efficacy.

4.1.1 – Wilson, Heath, and the Industrial Relations Act 1971

Edward Heath inherited from his predecessor, Harold Wilson, an environment of malaise between trade unions and employers. An abundance of wildcat strikes in the 1960s led to the hasty implementation of the Industrial Relations Act 1971 which sought to combat the 'rank-and-file militantism' of the previous decade.[99] It was hoped that it would create stable industrial relations practices by weakening the power of the members and strengthening the union leaders.[100] It did this by, among other things, removing the protection afforded to workers participating in unofficial industrial action.

It also took an employer-centric approach through the creation of the National Industrial Relations Court (NIRC) which could grant injunctions to prevent wildcat and other injurious strikes.[101] Oft considered the most damaging sections were those under Part V which prohibited 'unfair industrial practices'.[102] The Act also required that, in order to benefit from the statutory immunities from action in tort and contract, the unions were registered.[103]

These reforms have been viewed as too sweeping and radical to be effective.[104] The response of the trades unions was to simply defy some of the sections, with many refusing to undergo the bureaucratic registration procedure. In some cases judgments of the NIRC were ignored, resulting in contempt of court convictions for some trade

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99 Richard Hyman, *Strikes*, supra n14, pp.26-7; Sam Warner, '(Re)politicising 'the governmental': Resisting the Industrial Relations Act 1971' (2019) 21(3) *The British Journal of Politics and International Relations* 541, 546.

100 Pete Dorey 'Weakening the trade unions, one step at a time: The Thatcher Governments' strategy for the reform of trade union law' (2016) 37 *Historical Studies in Industrial Relations* 169, 193.

101 Industrial Relations Act 1971, Part VI; Edwin Teple, 'Britain's Industrial Relations Act 1971' (1971) 4(1) *Case Western Reserve Journal of International Law* art.3, 30–3.

102 Simon Honeyball, *Honeyball & Bowers' Textbook on Employment Law* (14ed, Oxford: Oxford University Press, 2016), p.7.

103 Industrial Relations Act 1971, ss.61 and 96.

104 Sam Warner, *supra* n99, 546-8.

union members. Notably, the Pentonville Five failed to obey a court order to cease picketing at a container depot and were consequently arrested and imprisoned.[105] The TUC's response was to call a general strike demanding their release. This eventually led to the Official Solicitor intervening in the Court of Appeal and the shop stewards were released.

The legislation was wildly unpopular and one of Harold Wilson's first actions of upon his return to power in 1974 was to repeal the 1971 Act.[106] The Act was just one of the landmark features of industrial relations in the 1970s and the following subsections will consider some of the others.

4.1.1.1 – *1970's Oil Shock*

An oil embargo imposed by the middle east in the early 1970s highlighted to the UK just how fragile their energy generation ecosystem was. It should be noted that, at the time, the top two methods of power generation were coal and oil.[107] With oil limited by the embargo, the NUM seized the opportunity to exert more force on the government in order to give higher wages for the coal miners (which had been the same since the end of the Second World War). The removal of the top two power sources caused great difficulty for the government, who ended up having to institute a three-day working week in order to ration electricity.

Though this was unpopular move that would eventually contribute to Heath's downfall and the return of Harold Wilson, it also kick-started a shift in the publics' perception of trade unions.[108] The perceived ruthlessness of the trade unions, capitalising on an international crisis to achieve their objectives, led many to think that the unions were only looking out for their members, rather than the greater good.

In this instance, the author would have to agree that it does seem like this, and such opportunism does not illustrate conduciveness between trade unions and the push for environmental transitions. The concept of bounded solidarity demonstrated here, which is to say constrained within the individual union, must be dismantled in order to

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105 *Midland Cold Storage v. Steer* [1972] I.C.R. 435.

106 Trade Union and Labour Relations Act 1974, s.1; Simon Honeyball, *supra* n102, p.7.

107 Terry Macalister, 'What caused the 1970s oil price shock?' (Guardian, 3 March 2011) <Available online: https://www.theguardian.com/environment/2011/mar/03/1970s-oil-price-shock> [Accessed 27/07/2022].

108 *ibid.*

make any successes in the push for an energy transition. Workers now must be prepared to make sacrifices (however minor) for the good of greater society and future generations. Without doing this, the effectiveness of industrial action will not diminish, but it will also not improve.

4.1.1.2 – *The Winter of Discontent*

The months between November 1978 and February 1979 were marked by widespread demand for increased pay above and beyond the caps that Callaghan's government had been imposing.[109] These demands were met by opposition from the labour government and employers alike which led to an abundance of industrial action across various sectors, including hauliers, gravediggers and refuse collectors.[110]

The *fait accompli* came when the public started to suffer immensely. Refuse was piling up on street corners, there were no graves being dug and the government was under scrutiny for allowing their main benefactors to run amok and engage in improper industrial action.[111] The government had not endorsed the industrial action, they contributed to the cause of it– they were the trade unions' opponents. Thatcher, then leader of the Opposition was capitalising on the relationship between the unions and the Labour party in order to make political gains.[112]

Similar to the resistance shown to the Industrial Relations Act, the industrial action during the winter of discontent was effective because it caused disruption. The end of the Winter demarcated the end of Labour governance and was the beginning of 20 years of Conservative rule. Under Thatcher and then Major, there would be a palpable termination of the post-war consensus and significant shift away from trade unionism that will be explored in the next section.

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109 Colin Hay, "The winter of discontent thirty years on." (2009) 80(4) *The Political Quarterly* 545, 545-6.

110 Tara Martin López, *The Winter of Discontent: Myth, Memory, and History* (ed, Liverpool: Liverpool University Press, 2014).

111 *ibid*, pp.117-9; Richard Hyman, *supra* n14, p.39.

112 Tara Lopez, *supra* n110, p.117.

4.1.2 – Thatcher's Neoliberal Legacy

Margaret Thatcher and her *pensée unique* have gained notoriety in the realm of trade unionism for her militant opposition and systemic oppression of trade unions and, by extension, industrial action. Her mantra 'There Is No Alternative' has become emblematic of the shift in politics and legal regulation towards a more neoliberal form of governance.[113]

What exactly neoliberalism entails is a somewhat elusive question within the realm of labour law so this subsection will try to ascertain a definition as well as what it might mean for the trade union movement in terms of efficacy. McCarthy and Prudham consider neoliberalism to be akin to 'worship of the self-regulating market'.[114] Thatcher placed a great deal of emphasis on allowing the Keynesian market of supply and demand to regulate the relations between actors in the market, rather than by governmental setting of standards to adhere to.[115] Since Trade Unions interfered in the way the market operated, in that they could use the 'power in numbers' to effectively force higher wages and essentially bypass market control, Thatcher considered them to be a threat that needed to be dealt with.

Thatcher introduced legislation that her conservative predecessors had considered but ultimately declared too politically risky to be worthwhile.[116] The Winter of Discontent under Callaghan that contributed towards her 1979 election victory also presaged the downfall of the trade union movement. It was the effects of that period fraught with industrial action that was the turning point for many of those in her party that had previously been hesitant to support anti-trade union legislation.[117]

Thatcher's Secretary of Employment, Jim Prior, was acting as the pragmatic voice of reason in the cabinet, restraining his colleagues from waging an 'all-out-war' against the unions. There was still an underlying fear that acting too hastily would lead to a

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113 Jason Hickel, 'Neoliberalism and the End of Democracy' in Julie MacLeavy et al., *The Handbook of Neoliberalism* (ed, Abingdon: Routledge, 2016), p.144.

114 James McCarthy and Scott Prudham, 'Neoliberal nature and the nature of neoliberalism' (2004) 35 *Geoforum* 275, 276 *et seq*.

115 Bob Jessop, 'From Thatcherism to New Labour: Neo-Liberalism, Workfarism, and Labour Market Regulation' in Henk Overbeek*, The Political Economy of European Employment: European Integration and the Transnationalization of the (Un)Employment Question* (ed, London: Routledge, 2007), p147; *idem*, 'Margaret Thatcher and Thatcherism: Dead but Not Buried' (2015) 10(1) *British Politics* 16, 19-23.

116 Neil Mitchell, 'Where traditional Tories fear to tread: Mrs Thatcher's trade union policy' (1987) 10(1) *West European Politics* 33, 35 *et seq*.

117 Pete Dorey, *supra* n100, 173.

repeat of the wildly unpopular Industrial Relations Act of 1971 which they thought would lead to another shift in public opinion, this time towards sympathy to the trade unions.[118]

In contemplation of the 1971 Act, Thatcher's legislative changes were more comparable to the way a boa constrictor operates. The boa does not instantly kill its prey: it gradually tightens its coil around its prey as it breathes out and prevents it from breathing in. By gradually making changes to the law and creating more 'hoops' for trade unions to jump through, Thatcher's administration coiled its way around the trade unions and began to close in. The more they enacted, the more they squeezed. The unions were aware that this was happening but were powerless to stop it. Though the movement was not killed, it was severely maimed.

The legislation did not just make it more difficult to use trade unions and their power, it sowed the seeds of despondency in those who had previously believed that there was power in a union. By way of illustration, the miners' strike in 1984 will be considered below.

4.1.2.1 – *Scargill v. Thatcher: 1984-5 Miners' Strike*

In 1984 there was a dispute going on between the National Union of Mineworkers (NUM) and the National Coal Board (NCB, backed by Thatcher's government). The NUM was looking to prevent the closure of collieries around the country and keep as many miners in work as possible. Those participating in 'flying pickets' resorted to violence against their colleagues who had elected to continue working in the face of the industrial action. Though the usage of brutality against others is, in the present author's view, deplorable, it goes to show the desperation of those who were participating in the industrial action.

Whilst it was not in the minds of the workers at the time, this strike might be considered as contributing, at least in part, to a differentiated responsibility just transition. They aimed to prevent the declining usage of fossil fuels by keeping collieries open. Though their reasoning was to keep the miners in work rather than ensuring the transition to a net-zero carbon economy, the outcome might have been similar. Of course, this is a very simplistic view of the situation and what was happening in the bigger picture much more complicated. The crux of the issue is that the unions were not seeking retraining

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118 *ibid*, 181.

or re-education for the miners if it failed, and unfortunately, the campaign to keep the pits open had failed.

The industrial action was declared unlawful by the high court owing to a lack of a national ballot of NUM members to endorse the strike. Miners in the affected areas lost their jobs, and poverty increased drastically in the former coal-mining areas. The loss suffered by the NUM members went beyond these tangible effects. Such a crushing defeat also had detrimental effects on the psyches of the workers. A wave of despondency swept over the trade union movement, and it is something that they have still not recovered from. Seeing their comrades fail in such a public manner caused many to lose faith in trade unions and there was a marked decrease in the number of strikes in the coming years.[119]

4.1.3 – 'New Labour' as a *Cause Célèbre*?

The incoming premiership of Tony Blair was lauded by many within the trade union movement as a welcome change from 20 years of conservative leadership. Labour, as the party that historically benefited trade unions and the working class, had returned to power. It was expected that they would reverse a lot of the changes that Thatcher and Major had introduced, including the balloting requirements, prohibitions of secondary action and flying picketing.

The celebration, however, was premature. One of Blair's main promises was that there would be "no return to […] the trade union law of the 1970s".[120] *Prima facie*, this appears as if he was going to be perpetuating the neoliberalism that had become the norm under his predecessors and continue to leave the regulation of employment to the market. Blair was quite clear in his manifesto that he would be attempting to implement basic individual employment rights in lieu of the return to strong trade unionism, in order to promote "partnership not conflict between employers and employees".[121]

Whilst much of the legislation passed by New Labour remains in force, including the National Minimum Wage Act 1998 and the Equality Act 2010, there have been no

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119 Sjaak van der Velden *et al*., *Strikes Around the World: Case-studies of 15 Countries* (ed, Amsterdam: Amsterdam University Press, 2007), pp.352-4.

120 John McIlroy, 'New Labour, New Unions, New Left' (2000) 24(2) *Capital & Class* 11, 18.

121 Labour Party, 'New Labour – Because Britain Deserves Better' (London: Labour Party, 1997).

advancements to trade union rights. The individual employment rights, of course, deserve recognition in their own right as bulwarks against rogue duplicitous employers. There is not much they can do, however, when it comes to the subject matter of this dissertation. The fact that even the Labour party that had historically relaxed regulation of trade union activities was unwilling to enact legislation that would broaden the scope of their action is truly telling of their feelings.

4.2 – Current (and Future?) Efficacy

Boris Johnson's government removed the prohibition of providing agency workers to act as 'strike breakers' and quadrupled the cap on trade union liability under tort if found liable (for example, for inducing breach of contract etc.).[122] Coupled with a decrease in trade union coverage and density, this further cripples a union's ability to make even small changes to a worker's terms and conditions, let alone make the significant changes necessary to bring about environmental change.

The former had been a long-standing rule that had gone unchanged by successive anti-union governments led by Thatcher, Major and Cameron.[123] The increase in the limit on damages that could be awarded have made it a lot more difficult for trade unions to act. The additional restrictions on trade union activity introduced by the Trade Union Act 2016 are already complex and difficult to comply with, and the stakes now are higher than ever.[124]

In addition to the above issues, the following subsections break down where the key issues lie in the effectiveness of trade unionism in achieving its goals.

4.2.1 – The Legal Framework

Though there is a way to force an employer to recognise the union, there is no mechanism to pressure an employer into undertaking collective bargaining. It is still a voluntary procedure. Even if a collective negotiation was successful and an agreement is signed, it must contain specific wording in order to be legally binding.

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122 The Conduct of Employment Agencies and Employment Businesses (Amendment) Regulations 2022 (2022/852); The Liability of Trade Unions in Proceedings in Tort (Increase of Limits on Damages) Order 2022 (2022/699).

123 Tim Sharp, 'Ministers should seek to resolve strikes, not bring in strike-breakers' (TUC, 13 June 2022) <Available online: https://www.tuc.org.uk/blogs/ministers-should-seek-resolve-strikes-not-bring-strike-breakers> [Accessed 12/07/2022].

124 Michael Ford KC and Tonia Novitz, *supra* n81.

Not only that, but the increasingly stringent requirements first updated by the Employment Relations Acts of 1999[125] and 2004[126] and then again under the Trade Union Act 2016 have meant that it is much more difficult to get a ballot passed. Employers can challenge any aspect of the procedure, and the court will tend to side with them and restrain the industrial action for the purpose of preserving the status quo.[127]

4.2.1.1 – *A Lighthouse in the Storm?*

One small victory that might be gleaned from the otherwise dismal state of affairs is that the courts have undergone a minor ideological shift. They are starting to reject the belief that the immunities must be interpreted restrictively,[128] and have begun to move towards the permissibility of a *de minimis* margin of error where the minor errors from the procedure do not completely invalidate the results.[129]

What would be necessary in order to provide tangible protection for workers is to place this on statutory footing. There is already room for inconsequential failures under the statutory balloting procedure found in s.232B of TULR(C)A, but it is limited to that part alone. The courts have taken the stance that because the legislature had restricted the permissibility of these failures to that section, they are hesitant to go beyond at risk of overstepping.

4.2.2 – Climate Strikes and Just Transitions: Looking Forward

Liz Truss in her campaign to become Conservative party leader vowed to cut down the power given to trade unions further and prevent them from 'holding the public to ransom'.[130] Though she did not provide any further information on what was meant by this, it is likely that there will be no expansion of trade union power any time soon. Rather, it is expected that she will cut down power further, either by making it more

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125 Employment Relations Act 1999.

126 Employment Relations Act 2004.

127 Richard Hyman, *Understanding European Trade Unionism: Between Market, Class and Society* (ed, London: SAGE Publications, 2001), c.4.

128 *Express Newspapers v. McShane* [1979] 1 WLR 390 (CA), 395G-H.

129 Ruth Dukes, 'The Right to Strike under UK Law: Something More Than a Slogan?: NURMT v SERCO, ASLEF v London & Birmingham Railway Ltd' (2011) 40(3) *Industrial Law Journal* 302, 302; British Airways v. Unite, *supra* n80; *P v. National Association of Schoolmasters/Union of Women Teachers* [2003] I.C.R. 386 (HL) (*P v. NASUWT*), [7].

130 Jessica Elgot, 'Liz Truss pledges crackdown on unions but is accused of 'Tory fantasy'' (Guardian, 25 July 2022) <Available online: https://www.theguardian.com/politics/2022/jul/25/liz-truss-pledges-crackdown-on-unions-but-is-accused-of-tory-fantasy> [Accessed 17/08/2022].

difficult to be recognised (by abolishing the statutory recognition procedure) or to undertake industrial action (by introducing more stringent procedures).[131]

As explored above, the steps that need to be taken already are complex and difficult to follow. Even the traditionally anti-union court has highlighted how difficult it is to follow the procedure in order to proceed with the action.[132] Any further statutory intervention along this vein would undoubtedly decrease the efficacy of trade unions further.

Without significant positive reform to the definition of a trade dispute under s.244 TULR(C)A there is no room for climate strikes in the workplace, and given Truss' previous hostility towards trade unions, both in her campaign and before, it is unlikely that any such change will happen soon. The unions are therefore not going to be able to act on the offensive and are confined to only act as shields for now.

4.3 – The Trades Union Congress' 'Green Rep' Scheme

The TUC, in partnership with the ITUC, are looking to implement a 'Green Workplace Representative' scheme which aims to open discussions between employers and unions as to improving the workplace's environmental impact. In the TUC's workplace manual, they give a brief overview of what they intend by green reps and highlight a few of the issues they face.[133] They recognise that, by allowing full market control, Thatcher's neoliberalism had unacceptably left workers behind.

Owing to the nature of the TUC, their suggestions in the handbook and the attached report are very broad which is simultaneously helpful and not. They make sweeping statements about what the procedural requirements are, but very little information about what the substantive outcomes ought to look like. There are considerations that speak to each of the above types of just transition, like the access to retraining and the 'greening' of new jobs, but they lack a concrete plan.

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131 Gemma McSherry, 'Unions call for Liz Truss to 'come clean' over plans to change workers' rights' (Guardian, 3 September 2022) <Available online: https://www.theguardian.com/politics/2022/sep/03/unions-call-for-liz-truss-to-come-clean-over-plans-to-change-workers-rights> [Accessed 04/09/2022].

132 *Post Office v. Union of Communication Workers*, *supra* n79, 261.

133 Trades Union Congress, *TUC Workplace Manual* (4ed, Trades Union Congress, 2021), Part 3; *idem*, A Just Transition to a greener, fairer economy (ed, Trades Union Congress, 2019)

Of course, it is not the TUC's fault that they lack specificity, it is a by-product of their cross-sectoral coverage. For example, if they championed a campaign to transition to solar power, they risk alienating the NUM. In order to satisfy all their affiliate members they need to keep their proposals as broad as possible.

They allude to an issue that has frequently arisen throughout this dissertation, which is to say that the law is 'lagging behind' what is needed.[134] In order to fix this, broad reform of the industrial relations systems is necessary, based on bipartisan cooperation to construct a framework that works for everyone.

The dichotomous relationship between trade unions and employers, which is to say the fundamental conflicts of interest that exist between the parties, will make this difficult. Theodore Roosevelt is credited with the phrase ""Nothing in this world is worth having or worth doing unless it means effort, pain, difficulty."[135] Collaboration across party lines to come up with a system that works well would well be worth it. One is not suggesting for a moment that a return to the trade union system in the 1970s is on the cards, but there has to be some change in order to make any real difference.

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134 Trades Union Congress, (2021) *supra* n133, pp.125-6.

135 Theodore Roosevelt, *American Ideals: And Other Essays, Social and Political* (ed, Philadelphia: Gebbie and Company, 1903).

Chapter 5 – Conclusion

The general idea of this dissertation is to assess the current framework of industrial relations in the UK against the example of the energy transition and just transitions.

5.1 – Chapter 2

Chapter Two sought to assess how, and why, trade unions might want to use their power to act as a sword and as a shield. It began with a brief consideration of the primary methods trade unions have to achieve change, including collective bargaining, ASOS and strike action. There was then consideration of how these methods have been used to effectively promote change, with specific attention to the coal miners' strikes.

It then provided consideration of just transitions, by looking at Normann and Tellman's trinary model of just transitions before focusing on a differentiated responsibility model.

The chapter concluded with consideration of how these fits in with the traditional conception of a trade union's role and how it goes beyond the previous desire for bargaining over jobs and terms of conditions.

5.2 – Chapter 3

The complex framework surrounding industrial action and collective bargaining was considered in Chapter Three.

It was concluded quite early on that it would be incredibly unlikely for a trade union to be able to actively promote positive environmental change in the current political and legal climate, owing to a difficulty with fitting it into the framework of TULR(C)A. Difficulties arose with both the golden formula and the prohibition on secondary action in that it might be too difficult to establish a trade dispute and even more difficult to establish that the action was not too far removed from the dispute to fall within it.

Conversely, there existed little difficulty in placing just transitions in the framework since a lot of the issues that are considered there also appear in the definition of 'trade dispute' for ss.178(2) and 244(1) of TULR(C)A. There was some difficulty surrounding the involvement of government and supranational organisations like the UN in debates, but it was concluded that a dissertation of this length would not be an appropriate forum for consideration of these particular issues.

5.3 – Chapter 4

Chapter Four was geared towards charting the efficacy of trade union tools. It began with a more general investigation into the ebb and flow of political and legal power before delving a bit more deeply into how the unions can act in the specific matters pertinent to this piece of work.

It began with a brief history of the efficacy with whistlestop tours in the 1970s, 1980s and late 1990s charting key developments in industrial relations. There were attempts to link this to just transitions, but since the concept of a just transition did not emerge until the early 21st century, there was very little to go off.

In addition to this, there was consideration of how factors outside the legislation and court judgments have affected the efficacy of unions, primarily how the seeds of despondency have been sown throughout the movement by successive defeats and 'reform' in the statute books.

5.4 – Closing Remarks

This dissertation does not profess to make any ground-breaking observations on the law, rather it has provided some detailed analysis on how comparatively new areas of law might fit into the established frameworks. It was not possible for full and thorough consideration of many issues, like the treatment of political strikes or how so-called 'environmental strikes' might fit into the framework. For further research, there might need to be some case law put before the court to test how far union's creative interpretation can bend the definition of trade dispute. Given that it is a recently emerging area of law (just transitions), there has been no opportunity for the court to comment on it.

Trade unions had historically been on the offensive, using their power to enact change, but successive governments have gradually squeezed the life out of the unions. To use the metaphor introduced in the first chapter, trade unions will be, for the foreseeable future, perpetually on the defensive. Instead of wielding their power as a sword, neoliberal "reform" hangs over the movement like a sword of Damocles. For now, trade unions are able to act as a shield, but unless reform happens soon, they will be unable to act as a sword. To amend the metaphor set out previously, the current framework has turned the sword of trade unionism into a dagger. Useful when they can get in close enough to use it, but pretty useless otherwise.

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